
Case	Title / Nature of Case
2:00 PM LINE 1 21-CIV-04741	MICHAEL D. LIBERTY VS. BANK OF THE WEST, ET AL
MICHAEL D. LIBERTY RONALD O'CONNELL	PRO/PER EDWARD S. ZUSMAN

SARAH HILLHOUSE'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

TENTATIVE RULING:

On its own motion the Court finds good cause and continues the hearing date on this motion from July 6, 2026 to July 13, 2026 pursuant to Section 437c(a)(3) to provide the Court more time to evaluate the arguments and evidence, recognizing that it means that the motion will be heard only 29 days before the August 11, 2026 trial date.

2:00 PM

LINE 2

21-CIV-04741

MICHAEL D. LIBERTY VS. BANK OF THE WEST, ET AL

MICHAEL D. LIBERTY
RONALD O'CONNELL

PRO/PER
EDWARD S. ZUSMAN

KRISTINA HILLHOUSE'S MOTION FOR SUMMARY JUDGMENT OR, IN THE ALTERNATIVE, SUMMARY ADJUDICATION

TENTATIVE RULING:

Defendant Kristina Hillhouse's Motion for Summary Judgment is GRANTED pursuant to Code Civ. Proc. Section 437c, and the alternative Motion for Summary Adjudication is accordingly moot for the reasons provided below.

Plaintiff requests judicial notice of the Order filed January 11, 2024 in this action, sustaining-in-part and overruling-in-part Defendant BMO Bank's Demurrer to Plaintiff's SAC. As part of the Court file in this case, the Order may be referenced without judicial notice being taken. However, to the extent necessary, the request is granted pursuant Evidence Code section 452(d).

Defendant Kristina Hillhouse requests judicial notice of documents filed in this action or in the family law action Case No. 17-FAM-00584. Plaintiff objects that the documents are irrelevant and are hearsay. Again, to the extent that it is even necessary, the documents are properly subject to judicial notice as documents of a court of this state, and the request is granted pursuant Evidence Code section 452(d), except to the extent that they are offered for the truth of any hearsay statements contained therein.

Evidentiary Objections

All Plaintiff's objections to Defendant's evidence, many of which border on frivolous, are OVERRULED.

All Defendant's objections to Plaintiff's Declaration in support of the Opposition are SUSTAINED on some or all of the grounds raised by Plaintiff, including but not limited to lack of foundation and speculation, except as to Objection No.'s 11-13, which are OVERRULED in part. While the "evidence" objected to in 11-13 is of questionable relevance and raises hearsay issues, Mr. Liberty can, at least in the abstract, testify about what Sarah Hillhouse told him.

Background

According to the operative Fourth Amended Complaint, Plaintiff is an attorney who employed Defendant Sarah Hillhouse (his onetime girlfriend) as an independent contractor, a bookkeeper. Defendant Kristina Hillhouse is Sarah Hillhouse's daughter, who served as Plaintiff's assistant temporarily. Plaintiff alleges that Defendants Hillhouse embezzled approximately \$800,000 from Plaintiff's retirement account, or "defined benefit plan," using secret bank transfers, and also embezzled from Plaintiff's business checking account. Defendant Bank of the West was a banking enterprise in San Mateo which is alleged to have failed to prevent the forgeries, embezzlements, and wrongful withdrawals, as well as misrepresenting to Plaintiff that he would be notified each time a withdrawal was made from his defined benefit plan. Defendant Pencomp Inc., ("Pencomp") whose president is Defendant Ronald O'Connell, is a third party
